

(36)

Tentative Ruling

Re: ***Pizarro v. Ochoa, et al.***
Superior Court Case No. 25CECG04421

Hearing Date: September 3, 2026 (Dept. 502)

Motion: by Plaintiff Bianca Pizarro Order Deeming Requests to Admit Truth of Facts Against Defendant Richard Ochoa Admitted; and Compelling his Responses to (1) Form Interrogatories; (2) Special Interrogatories; and (3) Requests for Production of Documents; and for Monetary Sanctions

Tentative Ruling:

To grant and to award monetary sanctions in the total amount of \$1,246.60 against Defendant Richard Ochoa (hereinafter "Defendant"), payable within 30 days of the date of this order, with the time to run from service of this minute order by the clerk.

The matters specified in Plaintiff's Requests for Admission, Set One, propounded on Defendant are deemed admitted, unless Defendant serves, before the hearing, proposed responses to the requests for admission that are in substantial compliance with the Code of Civil Procedure, section 2033.220.

Defendant shall serve verified responses without objections, to Plaintiff's Form Interrogatories, Set Two, Special Interrogatories, Set One, and Request for Production of Documents, Set One, no later than 10 court days from the date of this order, with the time to run from the service of this minute order by the clerk.

Explanation:

Interrogatories and Document Production

Defendant has had ample time to respond to the discovery propounded by defendant, and he has not done so. Failing to respond to discovery within the 30-day time limit waives objections to the discovery, including claims of privilege and work product protection. (Code Civ. Proc., §§ 2030.290, subd. (a), 2031.300, subd. (a); see *Leach v. Sup.Ct. (Markum)* (1980) 111 Cal.App.3d 902, 905-906.)

Requests for Admissions

Failure to timely respond to requests for admission results in a waiver of all objections to the requests. (Code Civ. Proc., § 2033.280, subd. (a).) The statutory language leaves no room for discretion. (*Tobin v. Oris* (1992) 3 Cal.App.4th 814, 828.) "The law governing the consequences for failing to respond to requests for admission may be the most unforgiving in civil procedure. There is no relief under [Code of Civil Procedure] section 473. The defaulting party is limited to the remedies available in [Code of Civil Procedure section 2033.280]" (*Demyer v. Costa Mesa Mobile Home Estates* (1995) 36

Cal.App.4th 393, 394-395, disapproved on other grounds in *Wilcox v. Birtwhistle* (1999) 21 Cal.4th 973, 983, fn. 12.)

But the court may relieve the party who fails to file a timely response if, before entry of the order deeming the requested matters admitted, the party in default (1) moves for relief from waiver and shows that the failure to serve a timely response was due to "mistake, inadvertence or excusable neglect" and (2) serves a response in "substantial compliance" with Code of Civil Procedure section 2033.220. (Code Civ. Proc., § 2033.280, subd. (a)-(c); see also *Brigante v. Huang* (1993) 20 Cal.App.4th 1569, 1584, disapproved on other grounds in *Wilcox v. Birtwhistle* (1999) 21 Cal.4th 973, 983, fn. 12.) "If the party manages to serve its responses before the hearing, the court has no discretion but to deny the motion [¶] Everything, in short, depends on submitting responses prior to the hearing." (*Demyer v. Costa Mesa Mobile Home Estates* (1995) 26 Cal.App.4th 393, 395-396.)

Monetary Sanctions

Sanctions are mandatory unless the court finds that the party acted "with substantial justification" or other circumstances that would render sanctions "unjust." (Code Civ. Proc., §§ 2030.290, subd. (c) [interrogatories], 2031.300, subd. (c) [document demands], 2033.280, subd. (c) [requests for admission].) Since no opposition was filed, no facts were presented to warrant finding sanctions unjust. The court finds it reasonable to allow only 2.5 hours for the preparation of these simple discovery motions at the hourly rate of \$400, provided by counsel, and \$246.60 for the cost of filing these motions. Therefore, the total amount of sanctions awarded is \$1,246.60.

Pursuant to California Rules of Court, rule 3.1312(a), and Code of Civil Procedure section 1019.5, subdivision (a), no further written order is necessary. The minute order adopting this tentative ruling will serve as the order of the court and service by the clerk will constitute notice of the order.

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Issued By:  **on** 9-2-26 .

(Judge's initials) (Date)